

25LBCV01089 25LBCV01089

County: los-angeles

Division: Civil Law and Motion

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In consolidated cases 25LBCV01089, 25LBCV03558, and 25LBCV02078 Plaintiffs, Pedro Alberto Miranda, Skyy Felder-Simmons, and Catrina Sanchez, respectively, sue Defendants, Lyft, Inc. and Andrew David Krauss for damages arising out of an automobile accident.

Defendant moves for summary judgment on Plaintiffs' complaints. Defendant originally set the motion directed at Miranda for hearing on 6/16/26, but the parties agreed to continue the hearing. Defendant originally set the motions directed at Felder-Simmons and Sanchez for dates in December, but on 6/16/26, the Court rescheduled the motions for hearing on 8/20/26 and ordered Defendant to give notice, which it did.

Plaintiffs failed to timely file opposition papers. Recently, in *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion. The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an

opposing separate statement, the Court grants the motions.